

- (7) The expressions "police area" and "chief officer of police" mean, as respects the police district of Dublin Metropolis, that district and the chief commissioner of the police for that district, and elsewhere a police district and the county inspector of the Royal Irish Constabulary.

10. This Act may be cited as the Cinematograph Act, 1909, and shall come into operation on the first day of January nineteen hundred and ten.

Short title and
commence-
ment.

CHAPTER 31.

An Act to prevent the spread of Noxious Weeds in Ireland, and to make provision for the testing of Agricultural Seeds. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

1.—(1) The Department of Agriculture and Technical Instruction for Ireland (in this Act referred to as "the Department") may, with the consent of the council of any county, make an order declaring that throughout the county all plants of any species to which this section applies are noxious weeds for the purposes of this Part of this Act.

Definition of
noxious weeds
by the Depart-
ment of
Agriculture.

(2) The species of plants to which this section applies are ragwort, charlock, coltsfoot, thistle, and dock, and the order may include all or any of those species.

(3) The consent of the county council shall be signified by a resolution passed at a meeting of the council, and a copy of the resolution under the seal of the council shall be accepted as sufficient evidence of such consent.

(4) The Department may, and at the request of the county council, shall revoke any order made under this section.

2.—(1) Where the Department are satisfied that there are noxious weeds growing upon any land, they may serve upon the occupier of the land a notice in writing requiring him to cut down or destroy those weeds in the manner and within the time specified in the notice.

Destruction of
noxious weeds.

(2) If any occupier upon whom a notice is served under this section fails to carry out the requirements of the notice within the time therein specified, he shall be guilty of an offence under this Act, and shall be liable on summary conviction to a penalty not exceeding, for the first offence, five pounds, and, for the second or any subsequent offence, ten pounds.

Entry on
premises.

3. Any officer of the Department shall have power at all reasonable hours to enter upon any land for the purpose of ascertaining whether any noxious weeds are growing thereon.

Notices.

4.—(1) Any notice which the Department are authorised to serve under this Act shall be sufficiently authenticated if signed by the secretary or other officer of the Department.

(2) Any such notice may be served by delivering the same or a true copy thereof either to or at the usual or last-known residence of the person to whom it is addressed, or where addressed to the occupier of premises then to some person on the premises, or, if there is no person on the premises who can be so served, then by fixing the same or a true copy thereof on some conspicuous part of the premises; it may also be served by sending the same or a true copy thereof by post addressed to a person at such residence or premises as above mentioned.

(3) Any such notice may be addressed by the description of the "occupier" of the premises (naming them) in respect of which the notice is served without further name or description.

PART II.

AGRICULTURAL SEEDS.

Power to
examine and
take samples
of agricultural
seeds.

5.—(1) Any officer of the Department shall have power at all reasonable hours to enter the shop, store, or other premises of any person who sells or exposes or keeps for sale agricultural seeds for sowing, and to examine and take samples of any agricultural seeds that are upon the premises.

(2) The person on whose premises a sample of agricultural seeds is taken under this section shall, if the officer requires, give the name and address of the person from whom he procured the seeds; and, if he refuses to give such name and address, or wilfully gives a false name or address, he shall be guilty of an offence under this Act and shall be liable on summary conviction to a penalty not exceeding ten pounds.

Testing of agri-
cultural seeds
and publica-
tion of results.

6. The Department may cause any sample of agricultural seeds taken under this Act to be tested for purity and germination, and may publish in such manner as they think fit the results of the tests and the names and addresses of the persons upon whose premises the samples were taken, and of the persons from whom the seeds were stated to have been procured.

PART III.

GENERAL.

Obstruction of
officers.

7. If any person refuses to allow any officer of the Department to enter any land or premises which he is entitled to enter under this Act, or obstructs or impedes him in the execution of his duty, he shall be guilty of an offence under this Act and

shall be liable on summary conviction to a penalty not exceeding five pounds.

8.—(1) Offences under this Act may be prosecuted, and penalties recoverable under this Act may be recovered, in a summary manner. Prosecution of offences.

(2) All penalties recovered under this Act shall, notwithstanding any provision in any other Act, be paid to the Department, and shall be applied in aid of the expenses of the Department in the execution of this Act.

9. In this Act, unless the context otherwise requires,—

Interpretation.

The expression “noxious weed” means any plant declared by an order of the Department under this Act to be a noxious weed in any county to which the order applies:

The expression “agricultural seeds” means the seeds of grass, clover, flax, cereals, turnips, rape, mangel, carrots, cabbage, or parsnips:

The expression “occupier” shall be deemed to include—

(a) in the case of any public road, the county or district council by whom the road is maintained;

(b) in the case of any land the occupier of which (being an individual) is absent from Ireland, any agent or other person entrusted with the management of the land on his behalf.

10. This Act shall apply to Ireland only, and shall come into operation on the first day of January nineteen hundred and ten, and may be cited as the *Weeds and Agricultural Seeds (Ireland) Act, 1909.* Extent, commencement, and short title.

CHAPTER 32.

An Act to empower Local Authorities in Ireland to strike a Rate for advertising Health Resorts and Watering-Places. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. From and after the passing of this Act, the council of any urban or rural district, or the commissioners of any town not being an urban district, may advertise the advantages and amenities of the district, or any part of it, or of the town, as a health resort or watering-place, by the insertion of advertisements in newspapers not published within the area of charge, or by placards or otherwise, as they may see fit, and may expend money for the purpose, provided that the sums so expended shall not in any one financial year exceed the

Power of local authority to strike a rate for advertisement.